

		<u>Motion 2</u> demonstrates that RFPs Set Three and SROGs Set Four were served on 10/15/24 and 11/5/24; Smith responded on 12/5/24. (ROA 349, Harney Decl., ¶¶ 3-5, Exs. A - C.) Smith's counsel did not respond to a subsequent request to confer. (<i>Id.</i> at ¶ 2, Ex. D.) For the SROGs, the Motion concerns Nos. 458 – 460, 463. Smith has failed to show that any of the objections are warranted here, while the requested information appears relevant to issues in dispute in the case. Motion 2 is therefore GRANTED as to SROG Nos. 458-460 and 463. For the RFPs, the Motion concerns Nos. 103 -105, 111, and 112. As to RFP Nos. 103 – 105, although financial information is protected by the right to privacy, the requested documents are directly relevant here. The motion is therefore GRANTED as to Nos. 103-105. However, RFP Nos. 111 – 112 seek to improperly invade Smith's right to medical privacy, where the requested information does not appear to be relevant to the allegations in the pleadings, nor to damages to either party. The Motion is therefore DENIED as to RFP Nos. 111 – 112. The Court DENIES the sanctions request on Motion 2, as both sides' positions had some merit. <i>Counsel for Mr. Farkas is to give notice of these rulings.</i>
8.	Guzman v. City of Santa Ana 23-1323955	Before the court are four discovery motions in which the City of Santa Ana ("City") seeks response without objection to discovery it served on plaintiff David Guzman. The first three motions seek an order that Plaintiff provide responses to Form Interrogatories, Special Interrogatories and Requests for Production. The fourth motion seeks an order that Requests for Admissions be deemed admitted. The four motions are MOOT in part and GRANTED in part, as set forth herein. <u>Service of Discovery Requests</u> Plaintiff argues initially that he was not properly served with the four sets of discovery and therefore was not obligated to provide a timely response thereto. Plaintiff claims that CCP §1010.6(c)(3) states that electronic service is not authorized until the parties agree to electronic service. That section applies to "unrepresented" parties and is not applicable because plaintiff is represented by counsel. Since plaintiff was represented by counsel, service by email was proper pursuant to CCP §1010.6(a) which states, in part, "A

document may be served electronically in an action filed with the court as provided in this section, in accordance with rules adopted pursuant to subdivision (h)." The court therefore finds that the discovery was properly served.

Merits

All four motions are based on the City's argument that Plaintiff failed to serve timely responses and has therefore waived the right to object.

City establishes that on 8/2/24, it served Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admissions, Set One, on Plaintiff. (Exh. 1 to Lee decl.) City also establishes that Plaintiff had not served responses as of the filing of the motions on 11/7/24, despite being requested to do so. (Lee Decl. ¶¶5-6)

Responses to interrogatories, requests for production of documents, and requests for admission are due 30 days after service (plus appropriate time for method of service). (CCP §§ 2030.260, 2031.260, and 2033.250.)

California Code of Civil Procedure §2030.290 provides in part as follows: "If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply: (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). ... (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories."

Code of Civil Procedure §2031.300 provides in part as follows: "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: (a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). ... (b) The party making the demand may move for an order compelling response to the demand."

With respect to the Requests for Admission, a propounding party may ask the court for an order that deems the matters contained in the requests for

admission admitted if the receiving party fails to respond to the requests for admission. (*CCP § 2033.280(b)*.) The court shall grant the order unless it finds that the party to whom the requests were directed has served responses in conformance with *Code Civ. Proc. § 2033.220* before the hearing on the motion. (*CCP § 2033.280(c)*.)

Here, on 3/28/25 Plaintiff served verified responses to the Form Interrogatories, Set One and Requests for Admissions, Set One. The hybrid responses included both substantive responses to some requests as well as objections to others. At the same time, plaintiff also served unverified responses to Special Interrogatories, Set One, and Requests for Production, Set One, which consisted of only objections.

Although responses have now been served, City argues that “any *Pitchess* privilege has been waived” because the responses were not timely served. (Reply at 4:21-24) In most instances, the City would be correct. However, the plaintiff has asserted an objection based on “*Penal Code §§832.5-832.8* and *Evidence Code §§1043, 1045 and 1046*” which is referred to herein as the “*Pitchess* Objection” or “*Pitchess* Privilege.”

Where discovery of the items enumerated in *Penal Code §832.7(a)* is sought in civil litigation: “(1) the specific Evidence Code procedures relating to discovery of peace officer personnel records take precedence over the general discovery rules outlined in the Code of Civil Procedure, and (2) a party may not excuse his noncompliance with those specific provisions by ‘resorting to a waiver provision in the inapplicable and more generalized procedure which he chose to use.’” (*County of Los Angeles v. Superior Ct.* (1990) 219 Cal.App.3d 1605, 1611.) In other words, the City’s argument that Plaintiff has waived the *Pitchess* objection pursuant to the Discovery Act, has been disapproved.

The protection under the *Pitchess* Privilege is quite broad. As the Court stated in *Hackett v. Superior Ct.* (1993) 13 Cal.App.4th 96, 101, “the legislative intent is clear—to include within the conditional privilege all information in a peace officer’s personnel file, including home addresses and similar data, without regard to whether the information could also be obtained from the officer or elsewhere.”

As a result of plaintiff serving responses to the four sets of discovery, the Motions are **MOOT** to the extent they seek responses without objection and are therefore **DENIED**. Further, given the nature of the *Pitchess*

		Objections asserted in each of the four sets of discovery, a careful analysis of each request is needed, and the parties have not submitted argument or authority addressing each request. Also, the parties have not yet met and conferred regarding the responses to the specific requests. Although the four Motions to Compel Responses are DENIED, it is without prejudice to filing a Motion to Compel Further Responses and without prejudice to the City seeking discovery from plaintiff via other methods. In addition to responses to discovery, the City seeks monetary sanctions as to each motion. <i>Cal. Rules of Court, rule 3.1348(a)</i> states: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Monetary sanctions are mandatory when a party fails to respond to interrogatories, requests for production or requests for admission unless the court finds that the person subject to the sanctions acted with substantial justification. Plaintiff's assertion that electronic service was not allowed lacked substantial justification. Also, while plaintiff is correct that the Pitchess Objections are not waived because of a failure to timely serve responses to written discovery, there is no authority cited which holds that <i>Penal Code §§832.5-832.8</i> and <i>Evidence Code §§1043, 1045 and 1046</i> relieve the plaintiff from his obligation to at least respond to the discovery requests and timely assert the <i>Pitchess</i> Objections. Accordingly, the request for sanctions is GRANTED and plaintiff and his attorney, Corey Glave, are ordered to pay monetary sanctions, jointly and severally, in the amount of \$1,060 for each motion, for a total of \$4,240, to City, through its attorney of record, within 30 days. <i>Counsel for City is ordered to give notice of this ruling.</i>
9.	Carlton v. Ford Motor Company 24-1445099	Before the Court at present is the Demurrer filed by Defendants Ford Motor Company ("Ford") and Villa Ford of Orange ("Villa") (together the "Defendants") on 1/17/25. The Demurrer is directed to the Fifth and Sixth Causes of Action (each a "COA") in the Complaint filed by Plaintiffs Richard Carlton and Patricia Carlton ("Plaintiffs") on 12/6/24. The Demurrer is OVERRULED.